

25STCV02024 25STCV02024

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-23

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Case Number: 25STCV02024 Hearing Date: July 23, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 23, 2026

Case Name: Rebollar v. Emanuel Motors, LLC, et al.

Case No.: 25STCV02024

Matter: Motion for Sanctions

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On June 11, 2026, the Court denied Defendant Emanuel Motors, LLC's motion to compel arbitration, finding: "By failing to fund the initial JAMS consumer arbitration, resulting in the termination of that case, and taking no action to preserve or cure its default for nearly 14 months, Defendant materially breached the arbitration agreement and waived its right to compel arbitration under CCP § 1281.97."

Plaintiff Rebollar now seeks \$5,509.25 in sanctions for Defendant's failure to timely pay arbitration fees.

CCP § 1281.97(d) states, "If the employee or consumer proceeds with an action in a court of appropriate jurisdiction, the court shall impose sanctions on the drafting party in accordance with Section 1281.99."

CCP § 1281.99(a) states, "(a) The court shall impose a monetary sanction against a drafting party that materially breaches an arbitration agreement pursuant to subdivision (a) of Section 1281.97 or subdivision (a) of Section 1281.98, by ordering the drafting party to pay the reasonable expenses, including attorney's fees and costs, incurred by the employee or consumer as a result of the material breach."

The Court has reviewed the billing records and will only deduct \$690, consisting of \$630 in pre-arbitration and CLRA work and what seems to be \$60 associated with a billing error for Laura Turner.

The remaining fees and costs will be awarded. The Motion is granted in part as set forth herein.

Moving party to give notice.